



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

August 26, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 11073
(TWENTY-FIRST REVISION)

EXPIRATION DATE: 2026-11-30

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Nexpera, LLC
Houston, TX
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of chlorosulfonic acid in DOT Class 112S tank cars constructed of ASTM 240-70, Type 304L stainless steel, equipped with 1/2 inch thick full head shields, and provides no relief from the Hazardous Materials Regulations other than as specified. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.31(e)(2) in that metal jackets are required and § 179.101-1 in that the individual specification requirements are waived, except as provided herein.
5. BASIS: This special permit is based on the application Nexpera, LLC dated November 29, 2022, submitted in accordance with § 107.109.

Tracking Number: 2024084923

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification number	Packing Group
Chlorosulfonic acid (<i>with or without sulfur trioxide</i>)	8	UN1754	I
Sulfuric acid, fuming	8	UN1831	I

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Prescribed packagings are DOT Class 112S tank cars constructed of ASTM 240-70, Type 304L stainless steel, with a rated pressure of 340 pounds per square inch or greater. Each tank car must be equipped with ½ inch thick full head shields. Reporting marks for tank cars operating under this special permit must be on file with the Office of Hazardous Materials Safety (OHMS) prior to offering the tank cars for transportation.

b. TESTING: Each car must be tested and inspected as required for DOT Class 112S tank cars.

c. MARKING: Each tank car tank must be marked “DOT-SP 11073” in four inch letters and numerals on a contrasting background above the DOT specification number.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.10. MODAL REQUIREMENTS: No modal-specific requirements are required by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) — “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: BB